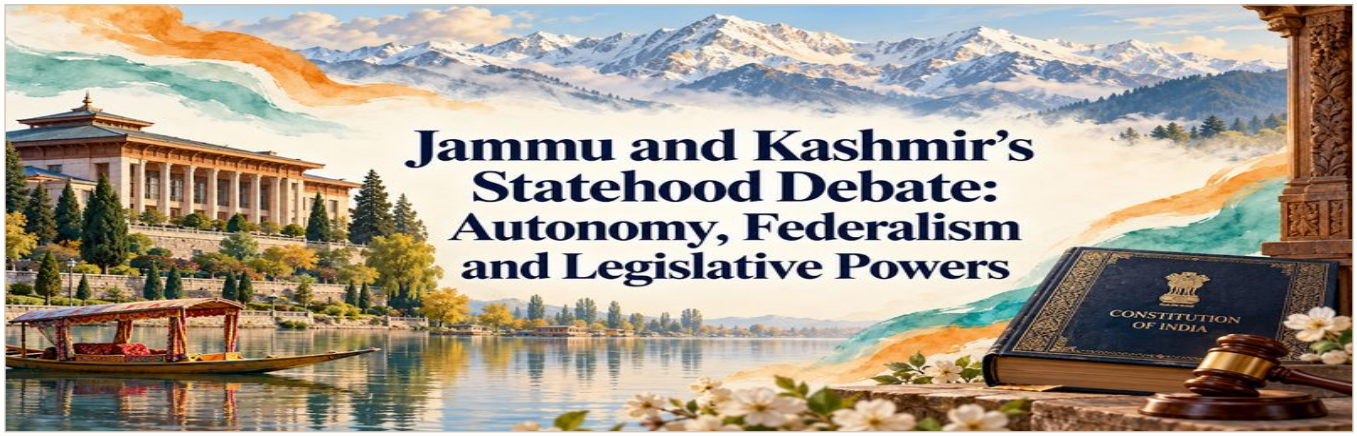


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Jammu and Kashmir's Statehood Debate: Autonomy, Federalism and Legislative Powers



> *Explore Jammu and Kashmir's statehood demand and its links to autonomy, federalism and constitutional safeguards. Understand the roles of Parliament, the Assembly and the bureaucracy in shaping the debate.*

Jammu and Kashmir's Statehood Debate: Autonomy, Federalism and Legislative Powers

Syllabus areas:

GS Paper II – Polity and Governance

On **September 28, 2026**, the Jammu and Kashmir Legislative Assembly passed a resolution demanding the **immediate restoration of full statehood**. Chief Minister Omar Abdullah had introduced it on September 25.

The resolution generated debate because it referred to the Assembly's earlier **2000 autonomy resolution** and **2024 special-status resolution**. A separate controversy arose when senior officials advised against taking up the resolution, citing pending judicial proceedings.

The developments raise questions about **federalism, representative government, legislative independence and the administration of Union Territories**.

Constitutional Background: What Changed in 2019?

The developments of 2019 involved two separate changes.

Changes concerning Article 370

Presidential orders issued in August 2019 ended the operation of J&K's earlier special constitutional arrangement under **Article 370** and applied the Constitution of India fully to the region.

Previously, Article 370 provided the mechanism through which Indian constitutional provisions were applied to J&K, including with exceptions and modifications.

Reorganisation of the former State

The **Jammu and Kashmir Reorganisation Act, 2019**, divided the former State into two Union Territories, effective **October 31, 2019**:

Union Territory	Institutional arrangement

Union Territory	Institutional arrangement
Jammu and Kashmir	Union Territory with a legislature
Ladakh	Union Territory without a legislature

The change in Article 370's operation and the conversion of the State into Union Territories were **legally distinct measures**.

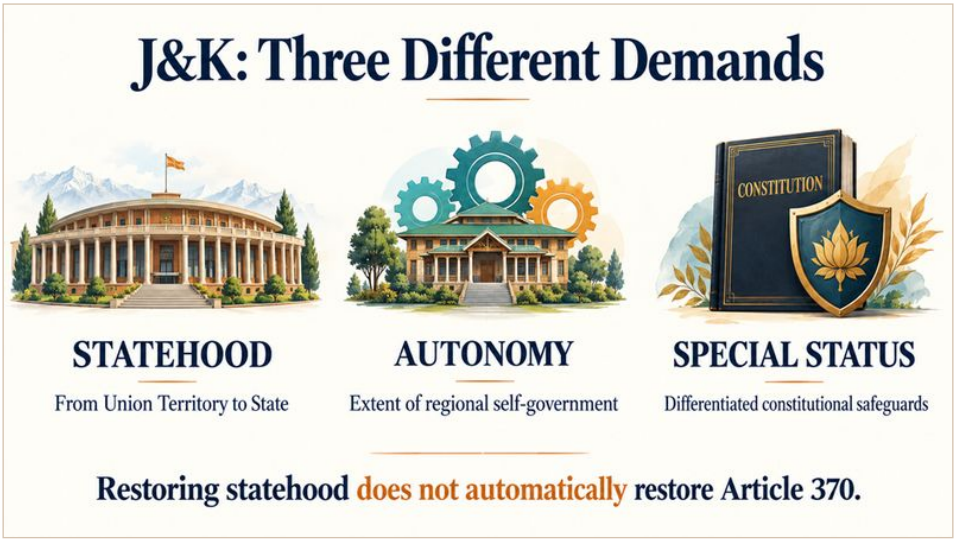
Statehood, Autonomy and Special Status

These terms are related but have different meanings.

Concept	Meaning
Statehood	Status as a constituent State of India, with the constitutional institutions and powers applicable to States.
Autonomy	The degree of self-government and distribution of authority between a region and the Union.
Special status	A differentiated constitutional arrangement, such as the framework previously associated with Article 370.

Restoring statehood would not automatically restore Article 370, Article 35A or the pre-2019 constitutional position.

Article 35A, introduced through the 1954 Presidential Order, enabled J&K's legislature to define permanent residents and provide specified rights and privileges concerning matters such as public employment and ownership of immovable property.



Why Does Statehood Matter?

J&K has an elected Assembly and Council of Ministers, but they operate within a **Union Territory framework**.

Under the Reorganisation Act, the Assembly can legislate on applicable State List and Concurrent List subjects, **excluding public order and police**. Its powers therefore differ from those ordinarily exercised by a State legislature.

The demand for statehood concerns:

- **Representative government:** Strengthening elected institutions' role in administration.
- **Executive accountability:** Connecting administrative decisions more closely with the elected government.
- **Federal relations:** Reconsidering the distribution of authority between J&K and the Union.
- **Public confidence:** Addressing political aspirations through constitutional institutions.

Statehood would still operate within India's constitutional division of powers; it would not mean unrestricted regional authority.

The Three Assembly Resolutions

Resolution	Main objective
June 26, 2000: Autonomy resolution	Substantially restore J&K's pre-1953 constitutional relationship with the Union.
November 6, 2024: Special-status resolution	Seek dialogue on restoring special status and constitutional guarantees.
September 28, 2026: Statehood resolution	Seek immediate restoration of full statehood.

These resolutions express political demands through legislative institutions. **Their adoption does not independently amend the Constitution or change J&K's legal status.**



Understanding the 2000 Autonomy Resolution

After returning to power in 1996, Chief Minister Farooq Abdullah established a **State Autonomy Committee** to examine changes in J&K's relationship with the Union.

Its recommendations drew upon the **Instrument of Accession, the Constitution Application Order of 1950 and the Delhi Agreement of 1952**. The Assembly accepted the committee's recommendations on June 26, 2000.

Major proposals

Area	Proposed change
Distribution of powers	A more limited Union role, centred on subjects such as defence, external affairs and communications.
Constitutional titles	Restore **Sadr-e-Riyasat** for the constitutional head and **Wazir-e-Azam** for the head of government.
Article 370	Replace the description "temporary" with "special."
President's Rule	Remove the applicability of **Article 356**.
Election and audit institutions	Establish separate arrangements for election administration and public auditing.
Presidential Orders	Roll back orders inconsistent with the proposed framework based on the 1950 Order and 1952 Delhi Agreement.

The proposals sought extensive internal autonomy **within India**, rather than independence.

Union government's response

On **July 4, 2000**, the Union Cabinet headed by Prime Minister Atal Bihari Vajpayee rejected the resolution. It argued that implementation would reverse important constitutional provisions and safeguards extended to J&K. The proposed changes were consequently not implemented.

Why Did References to Earlier Resolutions Cause Disagreement?

The National Conference linked the statehood demand with earlier resolutions to acknowledge longstanding concerns about **autonomy, land, employment and regional identity**.

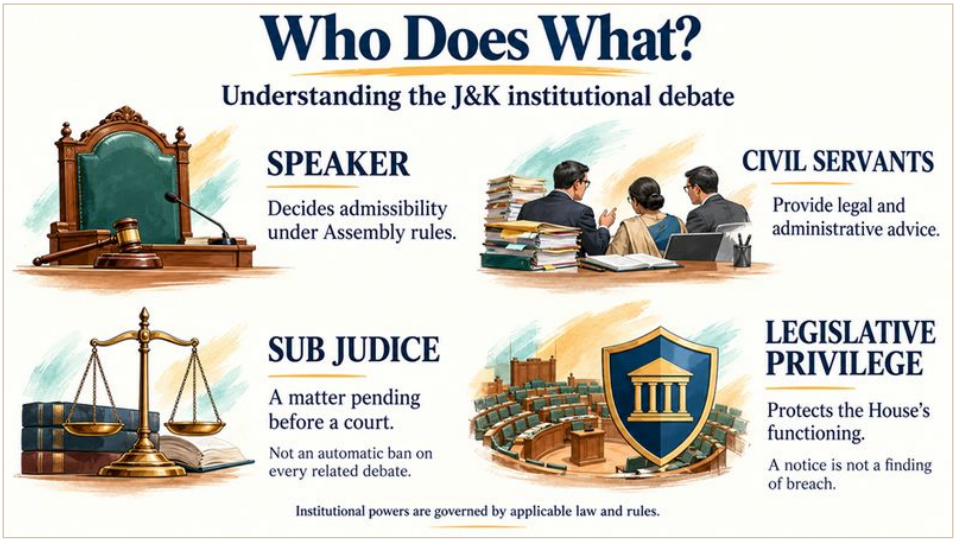
However, the BJP opposed these references and demanded a resolution confined to **statehood alone**. Its legislators staged a walkout before the vote. The disagreement therefore concerned the resolution's **scope and wording**, particularly the connection between statehood and earlier constitutional demands.

Omar Abdullah maintained that the immediate objective was statehood. He also opposed proposed amendments explicitly referring to Articles 370 and 35A and the pre-August 2019 position, arguing that they would make wider political agreement more difficult.

He further argued that statehood should not depend on the complete elimination of militancy, because externally supported violence could then delay a domestic constitutional decision. This was a **political argument about security and democratic governance**, rather than a statement of the legal procedure for restoring statehood.

Legislature–Bureaucracy Dispute

According to the Chief Minister, **Chief Secretary Atal Dulloo and Law Secretary Achal Sethi** separately advised the Speaker against allowing the resolution because the issue was **sub judice**. He stated that he had not been informed of these communications.



Legislators questioned whether the officials' intervention interfered with the authority of the elected government and Assembly. A notice seeking privilege proceedings against the officials followed.

What does "sub judice" mean?

Sub judice means that a matter is under consideration by a court.

Legislative rules may restrict discussion of pending cases to avoid prejudicing judicial proceedings. However, pending litigation does not automatically prohibit every discussion of the wider policy issue. Admissibility depends on the **applicable rules, the proposed discussion and relevant court directions**.

Institutional responsibilities

Institution	Relevant responsibility
Speaker	Decides the admissibility of Assembly business under applicable rules.
Civil servants	Provide legal and administrative advice within their assigned responsibilities.
Council of Ministers	Exercises executive responsibilities within the applicable legal framework.
Assembly	Debates public issues and performs legislative and oversight functions within its powers.

Officials' advice does not itself determine the Assembly's agenda. At the same time, providing legal advice does not automatically constitute improper interference.

What is a breach of privilege?

Legislative privileges protect the ability of the House and its members to perform their functions effectively.

An allegation that officials obstructed legislative functioning may be examined through the prescribed privilege procedure. **A privilege notice is an allegation—not a finding of guilt.**

J&K's powers and procedures must be assessed under the Constitution, the Reorganisation Act and applicable rules; its Assembly should not simply be assumed to have an institutional framework identical to that of every State.

How Can Statehood Be Restored?

Article 3 empowers Parliament to enact laws concerning the formation and reorganisation of States.

The relevant principles are:

- A Bill under Article 3 requires the **President's recommendation** before introduction.
- Such legislation is ordinarily passed by a **simple majority**.
- Under **Article 4**, the consequential constitutional changes covered by that provision do not require the Article 368 amendment procedure.

An Assembly resolution therefore communicates a demand; **restoration requires the necessary parliamentary legislation**.

Supreme Court's Position

In its **December 11, 2023 judgment**, the Supreme Court upheld the constitutional outcome of the 2019 measures concerning Article 370 and stated that statehood should be restored **at the earliest**.

In view of the Union government's assurance of restoration, the Court did **not finally determine the validity of converting J&K from a State into a Union Territory**. It upheld the creation of Ladakh as a Union Territory.

Significance

The debate connects several important constitutional themes:

- **Federalism:** Balancing national responsibilities with regional self-government.
- **Asymmetric federalism:** Understanding why some regions have differentiated constitutional arrangements.
- **Democratic accountability:** Clarifying responsibility between elected institutions and administrators.
- **Legislative independence:** Protecting deliberation while respecting procedural rules and judicial proceedings.
- **Constitutional accommodation:** Addressing regional aspirations through dialogue and lawful institutional processes.

Progress requires clarity about the specific demand being considered, transparent institutional procedures and coordination among the Union government, J&K's elected government and administrative authorities. Any changes should account for the rights and aspirations of the region's diverse communities.